

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 1443 OF 2011

Md. Shahjahan and others
-----Petitioners

=Versus=

Hymayum Kabir and others
-----Opposite Parties

Mr. Md. Shariful Islam with
Mr. Md. Iqbal Kabir, Advocates
-----For the Petitioners
Mr. Md. Mozibur Rahman, Advocate
-----For the Opposite Party Nos. 2,
12(Ka)-12(Ga)

Heard on 13.11.2016 and
Judgment on 15.12.2016

At the instance of defendant-appellant-petitioners, this Rule has been issued calling upon the opposite parties No. 1-11-12(Gha), 13-14, 15(Ka)-15, 16(Da) 16(Ka)-16(Da), 17(ka)-176(Ja) and 18-27 to show cause as to why the judgment and decree complained of in the petition moved in court today should not be aside.

The Rule is directed against the judgment and decree dated 21.03.2011 passed by the learned Joint District Judge, 3rd Court, Noakhali in Title Appeal No. 263 of 1996 affirming those dated 10.11.1996 passed by the 1st Court of Additional Senior Assistant Judge, Noakhali in Title Suit No. 464 of 1981.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite parties as the plaintiffs filed the Title Suit No.

464 of 1981 in the 1st Court of Additional Assistant Judge, Noakhali for a declaration that the exchange registered deed Nos. 1003 and 1004 both dated 18.03.1920 between one Hasan Ali, Kasim Ali and Yousuf Ali which was registered in the Joint Sub-registry office, Sadar, Noakhali is forged, fraudulent and also for a declaration of title upon the land measuring 1.15 acres of land described in the scheduled of the plaint.

The plaint case in brief is that Kasim Ali, Hasan Ali and Yousuf Ali jointly owners of land measuring 1.81 acres in equal shares. After amicable partition among them Kasim Ali got 0.4 acres which was rightly recorded in his name as Dag No. 375, in the D.S. Khatian. These 3 persons also owned the land measuring 1.01 acres and after amicable partition Kashem Ali became the owner in both Dag Nos. 375 and Dag No. 10 total land 1.15 acres. He died leaving behind 4 sons, namely, Aminulla, Din Mohammad, Mohammad Saleh and Habibulla. Out of the said brothers Aminullah died leaving behind the present plaintiffs as the legal heirs and subsequently the present plaintiffs-opposite parties No. 2-4 became entitled to the land total measuring 1.15 by way of transfer deed and by way of inheritance. After acquiring right in the above manner the record of right in Diara Survey by mistake the name of the defendant-petitioners were published in remark column of the said Parcha in Dag No. $\frac{400}{596}$, 4011, 402, Khatian No. 26 and 180. The plaintiffs' names were not directly

published because of wrong remark in the said Parcha. The cause of action for filing this suit arose from the date of knowledge as to the said mistake. The present petitioners as the defendants took opportunity to create the registered exchange deed Nos. 1003 and 1004 both dated 18.03.1920 between Kasem Ali and Hasan Ali but the land was never identified in the said exchange deed, as such, it was not acted upon in more than 60 years, therefore, the deed dated 18.03.1920 is void and inoperative.

The present petitioners as the defendants filed a written statement contending, inter alia, that Kasem Ali, Hasan Ali and Yousuf were the owners of the suit land in equal share and their names were published in the D.S. record of right (equivalent) to C.S. Khatian as the said brothers were the owners in equal share. Hasan Ali executed an exchange deed in order to exchange their respective land which were in Dag Nos. 270, 492 and 496 in the C.S. Khatian Nos. 162 of Mouza Romanandi. After the said exchange deed the legal heirs of Kasem Ali transferred 1.82 acres of land in D.S. Dag No. 132 and their names were rightly recorded in the Diara Khatian No. 26. Similarly after the death of Hasan Ali the names of the legal heirs were rightly recorded in the D.S. Khatian No. 26. It is further contended that the suit is barred by limitation because it was filed in the year of 1981 challenging the deed of 1920.

After hearing the parties the learned Additional Senior Assistant Judge, Noakhali, Additional Court No. 1, Sadar, Noakhali decreed the suit by his judgment dated 10.11.1996. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 263 of 1996 in the Court of learned District Judge, Noakhali which was heard by the learned Joint District Judge, Court No. 3, Noakhali who by his judgment and decree dated 21.03.2011 disallowed the appeal. This revisional application has been filed challenging the said judgment and decree and the Rule was issued thereupon.

Mr. Md. Shariful Islam, the learned Advocate appearing along with the learned Advocate Mr. Iqbal Kabir for the petitioners submits that It is not a proper judgment of affirmance in accordance with law in as such as the appellate could being the last court of fact committed an error of law in not considering the facts and circumstances of the case materials on record individually gave the finding in slip shod manner resulting an error occasioning failure of justice.

The learned Advocate further submits that the question of the law of limitation could be raised at any time of the proceeding for which no issue needs to be raised as a question of law can be raised and that the knowledge of the impugned deed of Ewas-nama of 1920 with the recording of right to Diary Khatian made after 1920 with the change of D.S. Khatian being well provided by

the plaintiffs own Exhibits 2E, 2F, the courts below committed an error of law in holding that the question of limitation with separate issue was not raised and the Ewaz-nama was not raised and the Ewaz-nama was not acted upon resulting an error in decision occasioning failure of justice.

The Rule has been opposed by the Opposite Party Nos. 1-11-12(Gha), 13-14, 15(Ka)-15, 16(Da) 16(Ka)-16(Da), 17(ka)-176(Ja) and 18-27.

Mr. Md. Mojibur Rahman, the learned Advocate appearing for the above opposite parties submits that the learned trial court considered all the relevant evidence produced and adduced by the respective parties in support of their respective cases and came to a conclusion to decree the suit and the learned appellate court below concurrently finding that the trial court committed no error of law and facts, therefore, he also concluded to dismiss the appeal and therefore both the courts concurrently found that the present opposite parties could their case but the petitioner failed to support their case with evidence.

The learned Advocate further submits that the present plaintiff-opposite parties claimed cancellation of a exchange deed dated 18.03.1920 and the learned court found the entitlement in favour of the present opposite parties who owned the suit land measuring 1.15 acres and the name of the predecessor of the opposite parties have published in the D.S. Khatian and

subsequently the present plaintiff opposite parties name have been found published in the Diara Survey and they have paid khajna to the government.

The learned Advocate also submits that by influenced concerned Tashil office showing the false and inoperative exchange deed dated 18.03.1920 the present petitioners could manage to put their names in the remark column of the Diara Khatian and came to knowledge of the present opposite parties in the year of 1980-81 and the suit filed by them instantly and there is no question of limitation period in filing the suit.

Considering the above submissions made the learned Advocates appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with its Annexures, in particular, the impugned judgment and decree passed by the appellate court below and also considering huge materials in the lower court records, it appears to me that the present opposite parties as the plaintiffs filed this title suit claiming their title and also for declaration that exchange deed dated 18.03.1920 claimed to have been executed by and between Hasan Ali and Kasem Ali two brothers as these documents was never operative and these documents was created by practicing fraud.

From the above information I have to decide whether the plaintiff-opposite parties could prove their entitlement upon the

land measuring 1.15 acres D.S. Dag Nos. 375 and 10 in khatian nos. 132 and 16 respectively in the name of the present opposite parties. It appears to this court that they owned the land by way of inheritance and also by way of purchase from the legal heirs of the land. Subsequently during the Diara Survey in the name of the plaintiff-opposite parties correctly recorded in the parcha. However the said parcha contains a remark column stating the name of the defendant-petitioners by a mistake as the present-petitioners are not in possession of the suit land and they do not have any record of right as such.

The present defendant-petitioner however claimed that there was an exchange deed executed by Hasan Ali and Kasem Ali who are the brothers. All of them succeed the land by way of inheritance. The said exchanged deed dated 18.03.1920 exhibit-Ka and Ka(1) seems to be an exchange deed executed at least 60 years back but the present defendant-petitioners took no step to give effect to the said deed by entering the respective names in the respective land in the record of right but the said document has never been acted upon to implement the purpose of the documents. I have also carefully noticed that the suit land was properly recorded in the name of the present plaintiff-opposite parties in Diara Survey (the local survey). However in the Diara Survey the suit land was recorded as Dag Nos. 400, $\frac{400}{596}$, 491 and 402 in the name of plaintiff- opposite parties, namely, Aminullah

and others. Total land measuring 1.15 acres in khatian Nos. 26, 180, land measuring. 70 acres and. 45 acres respectively, therefore, remarks column do not have any legal value which can create any right in favour of the defendant-petitioners, as such, the learned court committed no error of law.

The learned court also considered the matter of limitation because the suit was filed in the year of 1985 for a remedy to declare the registered exchange deed dated 18.03.1920. In this regard the learned court below considered the written statement filed by the present defendant-petitioners and I have also considered carefully that there was no objection raised or no contention made in the written statement filed by the present defendant-petitioners. In this record I have considered that the limitation for filing this suit has been claimed by the plaintiff-opposite parties that they came to know about the said error in the Diara Survey after publication of the record finally which is some time 1980-81, as such, there is no issue of limitation period in filing the original suit. In view of the above discussion I am of the view that the learned court below committed no error of law by concurrently deciding in favour of the present opposite parties.

I have perused the judgment and decree passed by the learned courts below. I have carefully examined the record as well as the judgment and decree passed by the learned trial and I am satisfied that the learned trial court has got into the facts and

laws and considered the documents carefully. The learned trial court came to its conclusion on the basis of the following findings:-

“লিখিত বর্ণনার বা ১ নং বিবাদী ১নং সাক্ষী হিসা-ব সাক্ষী প্রদান কালে উক্ত রূপ কোন বক্তব্য উত্থাপন না করায় বিবাদী পক্ষের ৩নং সাক্ষীর বক্তব্য ও বিশ্বাস করা যায় না। অপর দি-ক ২নং বাদী বাদীপক্ষের ১নং সাক্ষী হিসা-ব সাক্ষী প্রদান কাল আর্জীর সমর্থন বক্তব্য প্রদান করিয়া-ছ। তাছাড়া বাদীপক্ষ অপর ৬ জন সাক্ষী উপস্থিত করা হইয়াছে। উক্ত সাক্ষী-দের বক্তব্য হই-ত প্রমাণ হইয়া-ছ যে বাদীরা নালিশী জমি-ত দাবীদার আ-ছ। বাদীপক্ষের ১নং সাক্ষী on recall--- এ জবানবন্দি দিয়া ব-লন যে সাম্প্রতিক মাঠ জরি-প নালিশী জমি বাদী-দের না-ম রেকর্ড হইয়াছে। বিবাদীপক্ষের বিজ্ঞ কৌশলী বাদীপক্ষের ১নং সাক্ষীর উক্ত বক্তব্য অস্বীকার না করিয়া এই ম-র্ম জেরা ক-রন যে বাদীপক্ষ জরিপ কর্মচারী-দের অবৈধ উপা-য় বাধ্য ক-র ভূয়া মাঠ খতিয়ান সৃজন করিয়া-ছ। সুতরাং সাম্প্রতিক মাঠ জরি-প নাঃ জমির মাঠ রেকর্ড বাদী-দের না-ম হইয়া-ছ প্রমাণ হইয়া-ছ। উপস্থিত সাক্ষ্য প্রমাণ ও উপরোক্ত আ-লাচনা হই-ত এখা-ন ইহা স্পষ্ট হয় যে, বাদীগন কাছিম আলীর জেরা ওয়ারিশ হিসা-ব নালিশী ভূমি-ত স্বত্ব দখলকার আ-ছ, উক্ত রূপ স্বত্ব দখল হই-ত ইহাও স্পষ্ট যে ১৩২৬ বাং স-নর ২৭ শে ফাল্গুন তারি-খর তর্কিত এওয়াজ বন্টন দলিলদ্বয় কার্যকারী হয় নাই। ইহা ও প্রমাণ হইয়া-ছ যে নালিশী ভূমির দ্বারা রেকর্ড ভুল। কা-জই নালিশী ভূমি-ত স্বত্ব ঘোষণা সহ তর্কিত এওয়াজনামা দলিলদ্বয় জ্বাল, তনচকতা, ভূয়া, অকার্যকরী দাবী-ত বাদী-দের আনিত অত্র মোকদ্দমা সচল এবং বাদীগন তাহা-দের প্রার্থিত প্রতিকার পাওয়ার অধিকারী।”

The learned appellate court concurrently found that the plaintiff-appellant in that court could prove the case by adducing and producing sufficient documents as to the entitlement and the exchange deed which were created by practicing fraud and it never come in operation, therefore, the document has not been acted upon a long period of time. The learned appellate court also considered that the record in the Diara Survey has been mistakenly entered the names of the present defendant-petitioner

in the remark column of the parcha which cannot be a basis of any entitlement.

The learned appellate court came to its conclusion to dismiss the appeal on the basis of the following findings:-

“উভয়পক্ষ কর্তৃক উপস্থাপিত সাক্ষী-দর সাক্ষ্য এবং বিজ্ঞ নিম্ন আদাল-তর আ-লাচনা সিদ্ধান্ত পরী-লাচনায় অত্রাদতের তুলনায় বিজ্ঞ নিম্ন পক্ষ কর্তৃক উপস্থাপিত সাক্ষী-দর মৌখিক সাক্ষ্য বিস্তারিত আ-লাচন পূর্বক একটি সঠিক সিদ্ধান্ত উপনীত হ-য়-ছেন। সুতরাং বিজ্ঞ নিম্ন পক্ষ কর্তৃক আদাল-তর এ বিষ-য় আ-লাচনা -সিদ্ধান্ত-ক হস্ত-ক্ষপ করার কোন যুক্তিসঙ্গত কারন আ-ছ ম-ন হয় না। কিন্তু বিবাদীপ-ক্ষর জবাব পর্যা-লাচনায় দেখা যায় যে, তামাদি বিষ-য় জবা-ব সুস্পষ্ট কোন বক্তব্য ছিল না। কোন বিষ-য় সুস্পষ্ট বক্তব্য না থাক-ল সে বিষ-য় কোন ইসু গঠন করা প্র-য়োজন হয় না। আপীলকারী বিজ্ঞ আইনজীবী আরো বক্তব্য রা-খন যে, বাদী তা-দর মোরশ দলি-ল পক্ষ ছিল। সুতরাং উক্ত বাধ্যকর ন-হ ম-র্ম ঘোষনার প্রার্থনার আনীত মামলা গ্রহন-যোগ্য ন-হ। কিন্তু বাদীপ-ক্ষর দারি পর্যা-লাচনায় এটি স্পষ্ট যে, তারা তর্কিত দলিলটি কার্যকর হয়নি ম-র্ম দাবি ক-র-ছেন। দলিলটি তা-দর পূর্ববর্তী কর্তৃক সম্পাদন করা হয়নি ম-র্ম তা-দর কোন বক্তব্য নেই। সুতরাং দলিলটি রদ রহি-তর প্রার্থনা ছায়া ও অকার্যকর ঘোষনার দাবি-ত মামলা আনয়ন কর-ত আইনগত কোন বাধা আ-ছ ব-ল প্রতীয়মান হয় না।”

In the above circumstances I am satisfied that the learned courts below committed no error of law in deciding concurrently the judgments and decrees in favour of the present plaintiff-opposite parties, therefore, I am not inclined to interfere into the impugned judgment and decree.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged

The interim order of stay granted at the time of issuance of the Rule upon operation of the impugned judgment and decree passed by the courts below is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned courts and to send down the lower court records immediately.